

APEX HOLDINGS LLC OPERATING AGREEMENT

Document type: Operating Agreement

Test fixture — A — Scenario A — Nested LLC + Revocable Trust

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OPERATING AGREEMENT OF APEX HOLDINGS LLC

A Wyoming Limited Liability Company

This Operating Agreement (the "Agreement") is entered into as of January 10, 2019, by the member of Apex Holdings LLC (the "Company"), a limited liability company organized under the Wyoming Limited Liability Company Act.

ARTICLE I — NAME AND PRINCIPAL OFFICE

The name of the Company is Apex Holdings LLC. The principal office of the Company is located at 123 Main Street, Suite 400, Cheyenne, Wyoming 82001.

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ARTICLE II — MEMBERSHIP AND OWNERSHIP INTERESTS

Section 2.1 — Sole Member. The Company has one member: The Smith Family Revocable Trust, established under the laws of the State of California, dated September 5, 2017, with James Robert Smith as Trustee (the "Trust"). The Trust holds one hundred percent (100%) of the membership interests in Apex Holdings LLC.

Section 2.2 — Transfer Restrictions. No membership interest may be transferred, sold, or otherwise conveyed without the prior written consent of the managing member.

Section 2.3 — Capital Contributions. The Trust contributed all initial capital to the Company on January 10, 2019.

ARTICLE III — MANAGEMENT

Section 3.1 — Managing Member. The Company shall be managed by James Robert Smith, acting in his individual capacity as the Trustee of The Smith Family Revocable Trust, as Managing Member.

Section 3.2 — Authority of Managing Member. The Managing Member shall have full power and authority to manage and control the business and affairs of the Company, to make all decisions affecting the Company's business, and to execute and deliver all documents on behalf of the Company.

Section 3.3 — Distributions. Distributions shall be made at the discretion of the Managing Member, proportionate to membership interest percentages.

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